

Ameer Benno, Esq.
BENNO & ASSOCIATES P.C.
30 Wall Street, 8th Floor
New York, NY 10005
Tel.: (212) 227-9300
abenno@ameerbenno.com

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK
DWAYNE MILLER,

Plaintiff,

vs.

THE CITY OF NEW YORK, POLICE OFFICER RENE
CASTELLANO (Shield #2610), and POLICE OFFICER
JOHN DENNIS (Shield # 16919),

Defendants.

Index No.: 15-CIV-1086

COMPLAINT

JURY TRIAL REQUESTED

Plaintiff, by his attorneys, BENNO & ASSOCIATES P.C., complaining of Defendants, alleges as follows, upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violation of his civil rights under 42 U.S.C. § 1983 and the Fourth, and Fourteenth Amendments to the United States Constitution. Plaintiff also asserts claims under New York law.

JURISDICTION

2. The Court has jurisdiction over plaintiff's federal law claims under 28 U.S.C §§ 1331, 1343(a), (3), and (4).

JURY TRIAL DEMANDED

3. Plaintiff demands trial by jury of all issues properly triable thereby.

VENUE

4. Venue is proper for the United States District Court for the Eastern District of New York pursuant to 28 U.S.C. § 1391(b) and (c).

THE PARTIES

5. Plaintiff DWAYNE MILLER is a United States citizen and a citizen of the City and State of New York.

6. That at all times herein mentioned, defendant CITY OF NEW YORK (hereinafter "CITY") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

7. That at all times herein mentioned, defendant CITY operated, controlled and maintained a police force known as the New York Police Department ("hereinafter "NYPD").

8. That at all times herein mentioned, defendant POLICE OFFICER RENE CASTELLANO (hereinafter, "CASTELLANO") was and is an NYPD officer employed by defendant CITY.

9. That at all times herein mentioned, defendant CASTELLANO was acting within the course and scope of his/her employment with defendant CITY.

10. That at all times herein mentioned, defendant CASTELLANO was acting under color of state law.

11. Defendant CASTELLANO is sued herein in both his/her individual and official capacities.

12. That at all times herein mentioned, defendant POLICE OFFICER JOHN DENNIS (hereinafter, "DENNIS") was and is an NYPD officer employed by defendant CITY.

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2 13. That at all times herein mentioned, defendant DENNIS was acting within the
3 course and scope of his employment with defendant CITY.

4 14. That at all times herein mentioned, defendant DENNIS was acting under color
5 of state law.

6 15. That defendant DENNIS is sued herein in both his individual and official
7 capacities.

8 16. That at all times herein mentioned, defendant CITY was under an obligation to
9 use reasonable care in the hiring, training, retention, and supervision of its employees,
10 including, without limitation, defendants CASTELLANO and DENNIS.

11 17. At all relevant times herein, the individual defendants acted jointly and in
12 concert with each other.

13 18. Each individual defendant had the duty and the opportunity to protect plaintiff
14 from the unlawful actions of the other individual defendants, but each individual defendant
15 failed and refused to perform such duty, thereby proximately causing plaintiff's injuries.

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STATEMENT OF FACTS

19 19. The facts stated in this complaint are based, inter alia, on the personal
20 knowledge of plaintiff regarding events in which he was directly involved and upon
information and belief. The sources of "information and belief" factual statements are
primarily documents from the underlying criminal prosecution and related public documents
which are currently available to plaintiff. Those sources are incomplete, particularly, without

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2 limitation, as to numerous documents and court exhibits. This complaint is drawn without the
3 benefit of full discovery proceedings.

4 20. Plaintiff repeats and realleges each and every allegation set forth above as
5 though fully set forth at length herein.

6 21. On May 16, 2014 at approximately 7:30 p.m., at or around Blake Avenue and
7 Mother Gaston Boulevard, Brooklyn, New York, plaintiff was falsely arrested by defendants.

8 22. Plaintiff was lawfully present in his vehicle at a stoplight when defendants
9 approached his vehicle and pulled him over.

10 23. Plaintiff's vehicle was a white Ford 150 Econoline van.

11 24. Defendants, after stopping plaintiff, proceeded to conduct an illegal search of
12 plaintiff's car without consent or probable cause.

13 25. Defendants then placed plaintiff under arrest without a lawful basis.

14 26. Defendants, without consent or probable cause, confiscated plaintiff's personal
15 property.

16 27. Plaintiff was then taken to a police precinct and was put into a holding cell
17 where he was unlawfully imprisoned for an extended period of time.

18 28. Plaintiff was then transported to central booking and placed in a holding cell
19 where he remained unlawfully imprisoned for an extended period of time until he was finally
20 released.

21 29. Defendants engaged in the above-described conduct intentionally and/or with
22 deliberate indifference to plaintiff's constitutional and civil rights.

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2 30. As a result of the foregoing, plaintiff sustained, inter alia, loss of
3 enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and
4 humiliation, shame, indignity, damage to reputation, incurred monetary costs, economic loss,
5 and deprivation of his constitutional rights.

6 31. The amount of damages sought in this action exceeds the jurisdictional limits of
7 all lower Courts that might otherwise have jurisdiction.

8 **FIRST CLAIM FOR RELIEF AGAINST DEFENDANTS**
9 **CASTELLANO AND DENNIS**

10 **(False Arrest/Imprisonment Claim Under 42 U.S.C. § 1983)**

11 32. Plaintiff repeats and realleges each and every allegation set forth above as
12 though fully set forth at length herein.

13 33. Defendants, while acting in concert and within the scope of their employment
14 and authority, and without a warrant, seized plaintiff, forcibly put plaintiff into handcuffs,
15 placed plaintiff under arrest without any reasonable cause to believe that plaintiff had
16 committed, was committing, or was about to commit any offense, and caused plaintiff to be
17 imprisoned and incarcerated at various facilities, and thereby deprived plaintiff of his rights,
18 liberties, and freedoms under color of state law, including plaintiff's right to be free from
19 unreasonable searches and seizures under the Fourth and Fourteenth Amendments to the
20 United States Constitution.

**SECOND CLAIM FOR RELIEF AGAINST DEFENDANTS
CASTELLANO AND DENNIS**

(Malicious Abuse of Process Claim Under 42 U.S.C. § 1983)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. Defendants, acting in concert and within the scope of their employment and authority, employed regularly issued process against plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff without economic or social excuse or justification, and the defendants were seeking a collateral advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the process. Such collateral objective included, but was not limited to, covering up defendants' illegal actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

36. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and that by virtue of the aforementioned acts, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States, including his rights under the Fourth and Fourteenth Amendments to the U.S. Constitution to be free from unreasonable or unlawful searches and seizures and to due process of law.

**THIRD CLAIM FOR RELIEF AGAINST DEFENDANTS
CASTELLANO AND DENNIS**

(Failure-to-Intervene Claim Under 42 U.S.C. § 1983)

37. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

38. Each individual defendant had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in that defendant's presence by other police officers, but failed to intervene to prevent the unlawful conduct, despite having had a realistic opportunity to do so, in violation of plaintiff's right under the First, Fourth, and Fourteenth Amendments to the United States Constitution.

FOURTH CLAIM FOR RELIEF AGAINST DEFENDANT CITY

(Municipal Liability "Monell" Claim under 42 U.S.C. § 1983)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. The individual defendants, singly and collectively, while acting within the scope of their employment and authority and under color of state law, engaged in conduct that constituted customs, policies, practices, procedures, rules, or usages of the NYPD and their specific precinct(s) forbidden by the Constitution of the United States.

41. The foregoing customs, policies, practices, procedures, rules, and usages include, but are not limited to, making arrests without probable cause, subjecting individuals to excessive force, and committing perjury.

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2 42. The abuse to which plaintiff was subjected was consistent with an
3 institutionalized practice of the NYPD, which was known to and ratified by defendant CITY.

4 43. Despite knowledge of these institutionalized practices, defendant CITY has at
5 no time taken any effective action to prevent NYPD personnel from continuing to engage in
6 this type of misconduct.

7 44. Defendant CITY had prior notice of the vicious propensities of defendants
8 CASTELLANO and DENNIS, but took no steps to train them, correct their abuse of authority,
9 or to discourage their unlawful use of authority.

10 45. The failure of defendant CITY to properly train defendants CASTELLANO and
11 DENNIS included the failure to instruct them in applicable provisions of the State Penal Law
12 of the State of New York, federal and state constitutional limitations, and the proper and
13 prudent use of force.

14 46. Defendant CITY authorized, tolerated as institutionalized practices, and ratified
15 the misconduct detailed above by, among other things:

- 16 a. Failing to properly discipline, train, restrict, and control employees,
17 including defendants CASTELLANO and DENNIS, known to be
18 irresponsible in their dealings with citizens of the community;
- 19 b. Failing to take adequate precautions in the training, hiring, promotion, and
20 retention of police personnel, including specifically defendants
CASTELLANO and DENNIS.
- c. Failing to forward to the office of the District Attorney of Kings County
evidence of criminal acts committed by police personnel;

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2 d. Failing to establish or assure the functioning of a bona fide and meaningful
3 departmental system for dealing with complaints of police misconduct, but
4 instead responding to these types of complaints with bureaucratic power
5 and official denials calculated to mislead the public.

6 e. That the failure to supervise and/or train by defendant CITY of defendants
7 CASTELLANO and DENNIS rose to the level of deliberate indifference to
8 the consequences of its actions, and indifference to plaintiff's rights,
9 privileges and immunities secured by the Constitution of the United States
10 of America, inter alia, plaintiff's Fourth and Fourteenth Amendment
11 rights.

12 47. The NYPD has inadequately screened, hired, retained, trained, and supervised
13 its employees, including the individual defendants herein, to respect the constitutional rights of
14 those individuals with whom NYPD police officers come in contact.

15 48. The foregoing customs, policies, practices, procedures, rules, and usages
16 constituted deliberate indifference to plaintiff's safety, well-being, and constitutional rights.

17 49. The foregoing customs, policies, practices, procedures, rules, or usages were the
18 direct and proximate cause of the constitutional violations suffered by plaintiff.

19 50. The foregoing customs, policies, practices, procedures, rules, or usages were the
20 moving force behind the constitutional violations suffered by plaintiff.

Supplemental State Law Claims

51. Plaintiff repeats and realleges each and every allegation set forth above as
though fully set forth at length herein.

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2 52. Within ninety (90) days after the claims herein arose,
3 plaintiff duly served upon, presented to, and filed with defendant CITY OF NEW YORK a
4 Notice of Claim setting forth all facts and information required under New York General
Municipal Law § 50-e.

5 53. More than thirty (30) days have elapsed since the presentation of plaintiff's
6 claims to defendant CITY. And defendant CITY has wholly neglected or refused to make an
7 adjustment or payment thereof.

8 54. This action was commenced within one (1) year and ninety (90) days after the
9 claims accrued.

10 55. Plaintiff has complied with all conditions precedent to maintaining the instant
action.

11 56. That all of the causes of action pleaded herein fall within one or more of the
12 exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and
13 several liability.

14 **FIFTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

15 **(False Arrest/Imprisonment Claim Under New York Law)**

16 57. Plaintiff repeats and realleges each and every allegation set forth above as
though fully set forth at length herein.

17 58. Defendants, acting in concert and within the scope of their employment and
18 authority, arrested and caused plaintiff to be imprisoned without probable cause to believe that
19 plaintiff had committed any crime or offense, and without any warrant or authority to do so.
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2 59. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
3 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

4 **SIXTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

5 **(Assault Claim Under New York Law)**

6 60. Plaintiff repeats and realleges each and every allegation set forth above as
7 though fully set forth at length herein.

8 61. Defendants, acting in concert and within the scope of their employment and
9 authority, placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

10 62. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
11 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

12 **SEVENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

13 **(Battery Claim Under New York Law)**

14 63. Plaintiff repeats and realleges each and every allegation set forth above as
15 though fully set forth at length herein.

16 64. Defendants, acting in concert and within the scope of their employment and
17 authority, made offensive contact with plaintiff without privilege or consent.

18 65. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
19 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.
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EIGHTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS

(Abuse of Process Claim Under New York Law)

66. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

67. Defendants, acting in concert and within the scope of their employment and authority, employed regularly issued process against plaintiff compelling the performance or forbearance of prescribed acts. The purpose of activating the process was intent to harm plaintiff without economic or social excuse or justification, and the defendants were seeking a collateral advantage or corresponding detriment to plaintiff which was outside the legitimate ends of the process. Such collateral objective included, but was not limited to, covering up defendants' illegal actions in knowingly arresting plaintiff without any legal basis, justification, or probable cause.

68. Defendant CITY is also liable for the damages suffered by plaintiff as a result of the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

NINTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS

(Violation Of Plaintiff's Rights Under The New York State Constitution)

69. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

70. Defendants, acting in concert and within the scope of their employment and authority, violated plaintiff's right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

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2 71. Defendants, acting in concert and within the scope of their employment and
3 authority, consciously disregarded known and excessive risks to plaintiff's liberty and welfare
4 and engaged in a deliberate and unjustified effort to manufacture guilt against plaintiff in
5 furtherance of a plan to secure and sustain an unjust conviction against her.

6 72. Upon information and belief, this included a course of conduct and pattern of
7 behavior whereby defendants, inter alia, created and fabricated evidence to create the
8 appearance of probable cause to believe that plaintiff had committed one or more offenses,
9 intentionally and maliciously concealed material exculpatory evidence, and unduly influenced
10 the statements and testimony of witnesses by means of threats, coercion, violence, or deceit.

11 73. That by virtue of the aforementioned acts, defendants deprived plaintiff of his
12 liberty and property without due process of law, in contravention of Article I, § 6 of the New
13 York State Constitution.

14 74. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
15 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

16 **TENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

17 **(Intentional Infliction Of Emotional Distress)**

18 75. Plaintiff repeats and realleges each and every allegation set forth above as
19 though fully set forth at length herein.

20 76. Defendants, acting in concert and within the scope of their employment and
authority, engaged in the aforesaid conduct which was extreme, outrageous, shocking and
which exceeded all reasonable bounds of decency.

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2 77. Defendants' extreme and outrageous conduct was intended to cause and did
3 cause severe emotional distress to plaintiff.

4 78. Defendant CITY is liable for the damages suffered by plaintiff as a result of the
5 conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

6 **ELEVENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

7 **(Negligent Infliction Of Emotional Distress)**

8 79. Plaintiff repeats and realleges each and every allegation set forth above as
9 though fully set forth at length herein.

10 80. Defendants, acting in concert and within the scope of their employment and
11 authority, engaged in the aforesaid conduct in a manner that was careless and negligent as to
12 the emotional health of plaintiff.

13 81. Defendant CITY is liable for the damages suffered by the plaintiff as a result of
14 the conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

15 **TWELFTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

16 **(Negligence / Gross Negligence)**

17 82. Plaintiff repeats and realleges each and every allegation set forth above as
18 though fully set forth at length herein.

19 83. That the aforesaid incident and resulting injuries to plaintiff were due to the
20 negligence and/or gross negligence of defendants, and each of them, in the manner in which
they performed their duties as officers of the NYPD; in failing to exercise reasonable care in

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2 connection with the performance of their duties; in failing adequately to evaluate the situation
3 confronting them; and in otherwise being negligent and/or grossly negligent.

4 84. That the aforementioned incident and injuries to plaintiff were caused solely and
5 wholly by reason of the recklessness, carelessness, and negligence and/or gross negligence of
6 defendants herein and without any negligence on the part of plaintiff contributing thereto.

7 85. Defendant CITY is liable for the damages suffered by the plaintiff as a result of
8 the conduct of its agents, servants and/or employees, under the doctrine of respondeat superior.

9 **THIRTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

10 **(Negligent Screening, Hiring, Supervision, And Retention Claim Under New York Law)**

11 86. Plaintiff repeats and realleges each and every allegation set forth above as
12 though fully set forth at length herein.

13 87. Defendants failed to use reasonable care in the screening, hiring, supervision,
14 and retention of the NYPD employees who participated in the above unlawful conduct.

15 88. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
16 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

17 **FOURTEENTH CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

18 **(Negligent Training Claim Under New York Law)**

19 89. Plaintiff repeats and realleges each and every allegation set forth above as
20 though fully set forth at length herein.

90. Defendants failed to use reasonable care in the training of the NYPD employees
who participated in the above unlawful conduct.

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2 91. Defendant CITY is also liable for the damages suffered by plaintiff as a result of
3 the conduct of its agents, servants, and/or employees under the doctrine of respondeat superior.

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PRAYER FOR RELIEF

WHEREFORE, plaintiff demands the following relief jointly and severally against all the defendants:

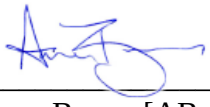
- a. Compensatory damages in an amount to be determined at trial;
- b. Punitive damages in an amount to be determined at trial;
- c. Attorney's fees pursuant to 42 U.S.C. § 1988;
- d. An award of plaintiff's costs of suit;
- e. Pre-judgment and post-judgment interest;
- f. Such other relief as this Court deems just and proper.

Dated: New York, New York
February 27, 2015

Respectfully submitted,

BENNO & ASSOCIATES P.C.

By: _____


Ameer Benno [AB-1130]
30 Wall Street, 8th Floor
New York, NY 10005
Tel.: (212) 227-9300
abenno@ameerbenno.com

Attorneys for Plaintiff